POPIA and Digital Privacy Module
Section 2: Your Rights as a Data Subject

PART A: LEARNING CONTENT

Introduction

Now that you understand what POPIA is and who it applies to, it is important to know what POPIA actually gives you. As a data subject, you are not powerless. POPIA grants you specific rights that you can exercise whenever an organisation collects or uses your personal information.

Knowing these rights means you can recognise when they are being violated and you know what steps to take when that happens.

Your 8 Rights Under POPIA

Right 1: The Right to be Notified

Before any organisation collects your personal information, they must inform you. They need to tell you who they are, why they are collecting your information, whether providing it is voluntary or mandatory, and what will happen if you choose not to provide it.

Right 2: The Right to Access Your Information

You have the right to ask any organisation what personal information they hold about you. They are required to provide you with a description of the information they have, as well as tell you who has had access to it. This is sometimes called a Subject Access Request.

Right 3: The Right to Correct or Delete Your Information

If an organisation holds personal information about you that is incorrect, outdated, incomplete, or misleading, you have the right to request that it be corrected or deleted. The organisation must respond to your request and cannot simply ignore it.

Right 4: The Right to Object to Processing

You have the right to object to an organisation processing your personal information in certain circumstances, particularly when they are using it for direct marketing or when the processing is causing you harm. Once you object, the organisation must stop using your information for that purpose.

Right 5: The Right Not to Have Your Information Sold or Shared Without Consent

An organisation cannot sell or share your personal information with a third party without your knowledge and consent, unless there is a legal basis for doing so. This is one of the most commonly violated rights, as seen in cases where data gets passed between companies for marketing purposes.

Right 6: The Right to Know About a Data Breach

If an organisation experiences a security breach and your personal information was exposed or accessed without authorisation, they are legally required to notify you and the Information Regulator as soon as reasonably possible.

Right 7: The Right to Lodge a Complaint

If you believe an organisation has violated your rights under POPIA, you have the right to lodge a formal complaint with the Information Regulator of South Africa. The Regulator has the authority to investigate the complaint and take action against the organisation if a violation is confirmed.

Right 8: The Right to Withdraw Consent

If you previously gave an organisation permission to use your personal information and you change your mind, you have the right to withdraw that consent at any time. Once you withdraw consent, the organisation must stop processing your information for the purpose you originally consented to.

What Happens When Your Rights Are Violated?

If an organisation ignores your request to access, correct, or delete your information, or if they share your data without consent, you do not have to accept it. First, contact the organisation directly and put your request in writing. This creates a record of your request. If they still do not respond or refuse to act, you can lodge a complaint with the Information Regulator. Organisations found guilty of POPIA violations can face fines of up to R10 million or imprisonment of up to 10 years, depending on the severity of the offence.

Interactive Scenario: Spot the Rights Violation

Read the following scenario and think about which of your rights are being violated.

Scenario: Lerato is a third-year student at a South African university. She downloaded a budgeting app and entered her name, student email address, and banking details to track her expenses. She never received any notification about how her data would be used. A month later, she started receiving calls from a loan company she had never contacted. When she called the app's support line to ask whether her data had been shared, they told her they could not give her that information and that by accepting the terms and conditions she had agreed to everything.

Questions:

- Which of Lerato's rights were potentially violated?
- What should the app have done before collecting her banking details?
- What steps can Lerato take now?

PART B: KNOWLEDGE CHECK QUIZ

Question 1

Thabo downloaded a shopping app and later found out the app had shared his phone number and home address with a marketing company without telling him. Which POPIA right was most directly violated?

A) The right to correct or delete information

B) The right to lodge a complaint

C) The right not to have information sold or shared without consent

D) The right to withdraw consent

Question 2

Nomsa contacted a company she previously bought clothes from online and asked them to delete all the personal information they had stored about her. The company ignored her request for three weeks. What right is the company violating?

A) The right to be notified

B) The right to correct or delete your information

C) The right to know about a data breach

D) The right to object to processing

Question 3

A university student discovers that the online platform they use for assignments suffered a security breach last month, but they were never informed. Which right was violated?

A) The right to withdraw consent
B) The right to access your information
C) The right to object to processing
D) The right to know about a data breach [CORRECT ANSWER]